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February 16, 2026

AS AMENDED

SENATE BILL NO. 1591

By: Rosino of the Senate

and

Newton of the House

An Act relating to medical marijuana; amending 63 O.S. 2021, Sections 423, as last amended by Section 8, Chapter 182, O.S.L. 2024 and 427.18, as last amended by Section 1, Chapter 272, O.S.L. 2025 (63 O.S. Supp. 2025, Sections 423 and 427.18), which relate to medical marijuana processing license and packaging and labeling requirements; limiting certain tetrahydrocannabinol (THC) amounts in certain products and packages; updating statutory language; and **declaring an emergency.**

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 63 O.S. 2021, Section 423, as last amended by Section 8, Chapter 182, O.S.L. 2024 (63 O.S. Supp. 2025, Section 423), is amended to read as follows:

Section 423. A. The Oklahoma Medical Marijuana Authority shall make available on its website in an easy-to-find location an application for a medical marijuana processing license. The Authority shall be authorized to issue two types of medical marijuana processor licenses based on the level of risk posed by the type of processing conducted:

1 1. Nonhazardous medical marijuana processor license; and

2 2. Hazardous medical marijuana processor license.

3 The application fee for a nonhazardous or hazardous medical
4 marijuana processor license shall be paid by the applicant in the
5 amounts provided for in Section 427.14 of this title. A method of
6 payment shall be provided on the website of the Authority. The
7 Authority shall have ninety (90) business days to review the
8 application; approve, reject, or deny the application; and send the
9 approval, rejection, or denial letter stating the reasons for the
10 rejection or denial to the applicant in the same method the
11 application was submitted to the Authority.

12 B. The Authority shall approve all applications which meet the
13 following criteria:

14 1. The applicant must be twenty-five (25) years of age or
15 older;

16 2. The applicant, if applying as an individual, must show
17 residency in this state;

18 3. All applying entities must show that all members, managers,
19 and board members are ~~Oklahoma~~ residents of this state;

20 4. An applying entity may show ownership of nonstate residents,
21 but that percentage ownership may not exceed twenty-five percent
22 (25%);

23 5. All applying individuals or entities must be registered to
24 conduct business in this state; and

1 6. All applicants must disclose all ownership interests in the
2 processing operation.

3 Applicants with a nonviolent felony conviction in the last two
4 (2) years, any other felony conviction in the last five (5) years,
5 inmates in the custody of the Department of Corrections or any
6 person currently incarcerated shall not qualify for a medical
7 marijuana processing license.

8 C. 1. A licensed processor may take marijuana plants and
9 distill or process these plants into concentrates, edibles, and
10 other forms for consumption. No individual edible medical marijuana
11 product shall include more than ten (10) milligrams of
12 tetrahydrocannabinol (THC) per edible and no more than one hundred
13 (100) milligrams of THC per package.

14 2. The Executive Director of the Authority shall make available
15 a set of standards which shall be used by licensed processors in the
16 preparation of edible marijuana products. The standards should be
17 in line with current food preparation guidelines. No excessive or
18 punitive rules may be established by the Executive Director.

19 3. Up to two times a year, the Authority may inspect a
20 processing operation and determine its compliance with the
21 preparation standards. If deficiencies are found, a written report
22 of the deficiency shall be issued to the licensed processor. The
23 licensed processor shall have one (1) month to correct the
24

1 deficiency or be subject to a fine of Five Hundred Dollars (\$500.00)
2 for each deficiency.

3 4. A licensed processor may sell marijuana products it creates
4 to a licensed dispensary or any other licensed processor. All sales
5 by a licensed processor shall be considered wholesale sales and
6 shall not be subject to taxation.

7 5. Under no circumstances may a licensed processor sell
8 marijuana or any marijuana product directly to a licensed medical
9 marijuana patient or licensed caregiver. However, a licensed
10 processor may process cannabis into a concentrated form for a
11 licensed medical marijuana patient for a fee.

12 6. Licensed processors shall be required to complete a monthly
13 yield and sales report to the Authority. This report shall be due
14 on the fifteenth of each month and shall provide reporting on the
15 previous month. This report shall detail the amount of marijuana
16 and medical marijuana products purchased in pounds, the amount of
17 marijuana cooked or processed in pounds, and the amount of waste in
18 pounds. Additionally, this report shall show total wholesale sales
19 in dollars. The Authority shall have oversight and auditing
20 responsibilities to ensure that all marijuana being processed is
21 accounted for.

22 D. The Authority shall oversee the inspection and compliance of
23 licensed processors producing products with marijuana as an
24

1 additive. If it becomes permissible under federal law, marijuana
2 may be moved across state lines.

3 E. Any device used for the processing or consumption of medical
4 marijuana shall be considered legal to be sold, manufactured,
5 distributed, and possessed. No merchant, wholesaler, manufacturer,
6 or individual may be unduly harassed or prosecuted for selling,
7 manufacturing, or possessing marijuana paraphernalia.

8 SECTION 2. AMENDATORY 63 O.S. 2021, Section 427.18, as
9 last amended by Section 1, Chapter 272, O.S.L. 2025 (63 O.S. Supp.
10 2025, Section 427.18), is amended to read as follows:

11 Section 427.18. A. A medical marijuana business shall not
12 sell, transfer, or otherwise distribute medical marijuana or medical
13 marijuana product that has not been packaged and labeled in
14 accordance with this section and rules promulgated by the Executive
15 Director of the Oklahoma Medical Marijuana Authority.

16 B. A medical marijuana dispensary shall return medical
17 marijuana and medical marijuana product that does not meet packaging
18 or labeling requirements in this section or rules promulgated
19 pursuant thereto to the entity who transferred it to the dispensary.
20 The medical marijuana dispensary shall document to whom the item was
21 returned, what was returned, and the date of the return, or dispose
22 of any usable marijuana that does not meet these requirements in
23 accordance with the Oklahoma Medical Marijuana and Patient
24 Protection Act.

1 C. 1. Medical marijuana packaging shall be packaged to
2 minimize its appeal to children and shall not depict images other
3 than the business name logo of the medical marijuana producer and
4 image of the product.

5 2. A medical marijuana business shall not place any content on
6 a container in a manner that reasonably appears to target
7 individuals under the age of twenty-one (21) including, but not
8 limited to, cartoon characters or similar images.

9 3. Labels on a container shall not include any false or
10 misleading statements.

11 4. No container shall be intentionally or knowingly labeled so
12 as to cause a reasonable patient confusion as to whether the medical
13 marijuana, medical marijuana concentrate, or medical marijuana
14 product is a trademarked product or labeled in a manner that
15 violates any federal trademark law or regulation. The label on the
16 container shall include a warning that states the following:

- 17 a. "For use by licensed medical marijuana patients only",
- 18 b. "Keep out of reach of children",
- 19 c. "It is illegal to drive a motor vehicle while under
20 the influence of marijuana or marijuana products",
- 21 d. "Women should not use marijuana or marijuana products
22 during pregnancy because of the risk of birth
23 defects", and
- 24 e. "This product has been tested for contaminants".

1 5. The label on the container shall not make any claims
2 regarding health or physical benefits to the patient.

3 6. The container itself may be clear in order to allow licensed
4 medical marijuana patients and licensed medical marijuana caregivers
5 the ability to view the product inside the container but shall be
6 child-resistant, as defined in Section 427.2 of this title.

7 7. At the point of sale and transfer of any medical marijuana,
8 medical marijuana concentrate, or medical marijuana products to a
9 licensed medical marijuana patient or licensed medical marijuana
10 caregiver, the dispensary shall place the medical marijuana, medical
11 marijuana concentrate, or medical marijuana products in an exit
12 package, as such term is defined in Section 427.2 of this title.

13 8. No individual edible medical marijuana product sold shall
14 include more than ten (10) milligrams of tetrahydrocannabinol (THC)
15 per edible and no more than one hundred (100) milligrams of THC per
16 package.

17 D. The Executive Director shall develop minimum standards for
18 packaging and labeling of medical marijuana, medical marijuana
19 concentrate, and medical marijuana products. Such standards shall
20 include, but not be limited to, the required contents of labels to
21 be affixed to all medical marijuana, medical marijuana concentrate,
22 and medical marijuana products prior to transfer to a licensed
23 patient or caregiver, which shall include, at a minimum:

24 1. THC and other cannabinoid potency, and terpenoid potency;

1 2. A statement indicating that the product has been tested for
2 contaminants;

3 3. One or more product warnings to be determined by the
4 Executive Director; and

5 4. Any other information the Executive Director deems
6 necessary.

7 **SECTION 3.** It being immediately necessary for the preservation
8 of the public peace, health or safety, an emergency is hereby
9 declared to exist, by reason whereof this act shall take effect and
10 be in full force from and after its passage and approval.

11 COMMITTEE REPORT BY: COMMITTEE ON HEALTH AND HUMAN SERVICES
12 February 16, 2026 - DO PASS AS AMENDED
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